

**CHAPTER lx.**

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Port Glasgow Water. A.D. 1918.
[6th February 1918.]

WHEREAS His Majesty's Secretary for Scotland has after inquiry held before Commissioners made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Port Glasgow Water Order Confirmation Act 1918. Short title.

A.D. 1918.
—S C H E D U L E.

PORT GLASGOW WATER.

Provisional Order to authorise the Provost Magistrates and Councillors of the Burgh of Port Glasgow to make and maintain additional Waterworks and for other purposes.

WHEREAS the provost magistrates and councillors of the burgh of Port Glasgow (hereinafter called "the Town Council" and "the burgh" respectively) are the local authority of the burgh under the Burgh Police (Scotland) Acts 1892 to 1911 and the Public Health (Scotland) Act 1897:

And whereas by the Port Glasgow Police Act 1865 (hereinafter called "the Act of 1865") the then commissioners of the burgh were empowered to augment the water supply of the burgh vested in them by taking the land springs and streams and making and maintaining the works in the said Act described:

And whereas further works have been made and maintained in connection with and now forming part of the water undertaking by virtue of the general powers contained in the General Police and Improvement (Scotland) Act 1862 and the Burgh Police (Scotland) Act 1892:

And whereas the affairs of the burgh including the water undertaking of the said commissioners became vested in the Town Council under and in virtue of the Town Councils (Scotland) Act 1900 and the said water undertaking is now managed and maintained by them:

And whereas the Town Council are by the Act of 1865 authorised to supply water to the burgh and the suburbs thereof and places and districts adjacent thereto and to the shipping in the harbour of Port Glasgow:

And whereas in consequence of the increase of population and the industrial development of the burgh the present supply of water has become insufficient:

And whereas it is expedient that an additional supply of water should be provided and that the Town Council should be

empowered to introduce the same and for that purpose to make and maintain the works hereinafter described and to acquire lands servitudes and other property in connection therewith: A.D. 1918.

And whereas it is expedient that further powers should be conferred on the Town Council in relation to their water undertaking:

And whereas it is expedient that the Town Council should be authorised to raise money by rates assessments and charges and by borrowing for the purposes of this Order and of their water undertaking in accordance with the provisions in that behalf of the Burgh Police (Scotland) Acts 1892 to 1911 as amended by this Order:

And whereas it is expedient that provisions should be made for the repayment of money to be borrowed under the authority of this Order:

And whereas estimates have been prepared by the Town Council for the construction and completion of the said additional waterworks and other works and for the purchase of land and as amended are as follows:—

	£
Purchase of lands and servitudes - - -	6,700
Reservoir filter-beds &c. - - -	18,300
Trunk mains catchwater &c. - - -	10,000
Total - - - - -	£35,000

And whereas the several works included in the said estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years:

And whereas plans and sections showing the lines and levels of the works authorised by this Order and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands and other property required or which may be taken for the purposes or under the powers of this Order were duly deposited in the offices at Paisley and Greenock respectively of the principal sheriff clerk of the county of Renfrew and the same are in this Order referred to as the deposited plans sections and book of reference:

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by

A.D. 1918. Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899 :

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows :—

Short and
collective
titles.

1. This Order may be cited as the Port Glasgow Water Order 1917 which together with the Act of 1865 may in so far as that Act relates to the supply of water be cited as the Port Glasgow Water Acts 1865 and 1917.

Commence-
ment of
Order.

2. This Order shall commence and have effect on and after the date of the passing of the Act confirming the same which date is hereinafter referred to as “the commencement of this Order.”

Interpreta-
tion.

3. In this Order the several words and expressions to which meanings are assigned by the Acts incorporated herewith shall have the same respective meanings unless there be something in the subject or context repugnant to such construction In this Order unless the context otherwise requires—

“The burgh” means the burgh of Port Glasgow ;

“The Town Council” means the provost magistrates and councillors of the burgh for the time being ;

“The water undertaking” means the waterworks and water undertaking vested in the Town Council and the works by this Order authorised to be constructed and the works connected therewith respectively ;

“The Act of 1865” means the Port Glasgow Police Act 1865 ;

“The Burgh Police Acts” mean the Burgh Police (Scotland) Acts 1892 to 1911 ;

“The Public Health Act” means the Public Health (Scotland) Act 1897 ;

“The sheriff” means the sheriff of the county of Renfrew or any of his substitutes.

Incorporation
of Acts

4. The following Acts and parts of Acts (so far as the same respectively are applicable for the purposes and are not inconsistent with the provisions of this Order) are hereby incorporated with and form part of this Order :—

The Lands Clauses Acts :

The Waterworks Clauses Act 1847 except the clauses and provisions with respect to the communication pipes to be laid by the undertakers and with respect to the amount of profit to be received by the undertakers when the waterworks are carried on for their benefit and also with the exception of clauses 68 70 and 71 Provided that the clauses of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes shall apply to the lines of pipes which may be laid under this Order:

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The Waterworks Clauses Act 1863 :

In construing the provisions of the foregoing Acts “the undertakers” “the company” and “the promoters of the undertaking” shall mean the Town Council :

The sections and provisions of the Railways Clauses Consolidation (Scotland) Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and the crossing of roads and other interference therewith and in construing the said sections and provisions “the company” means the Town Council “the railway” means the works authorised by this Order and the works connected therewith and “the centre of the railway” means any part of these works.

This Order shall be deemed a special Act within the meaning of the provisions of the said Acts wholly or partly incorporated herewith.

5. The Town Council may subject to the provisions of this Order make and maintain in the lines and according to the levels shown on the deposited plans and sections the works hereinafter described or some of them or some part or parts thereof and may purchase enter upon take appropriate hold and use compulsorily or by agreement such of the lands delineated on the deposited plans and described in the deposited book of reference as may be required for those purposes The said works are—

Power to
make new
waterworks.

- (1) A weir (Work No. 1) situate across the Cunston Burn in the parish of Kilmacolm and county of Renfrew at a point one hundred and ninety yards or thereby measured in a north-westerly direction from the

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southmost corner of inclosure numbered 1912 on the Ordnance Survey map (edition of 1914):

- (2) A conduit or line of pipes (Work No. 2) wholly situate in the parish of Kilmacolm and county of Renfrew commencing at the weir (Work No. 1) hereinbefore described and terminating at the south-west corner of the existing Leperstone Reservoir:
- (3) A conduit or line of pipes (Work No. 3) wholly situate in the parish of Kilmacolm and county of Renfrew commencing at a point in the northern embankment of the said Leperstone Reservoir twenty-three yards or thereby measured in a south-easterly direction from the upstand shaft at the northern embankment of Leperstone Reservoir and terminating at a point in the existing Auchindores Reservoir one hundred and sixty-four yards or thereby measured in a north-easterly direction from the said upstand shaft:
- (4) A reservoir (Work No. 4) situate partly in the parish of Kilmacolm and partly in the parish of Erskine both in the county of Renfrew being an enlargement of the existing Auchindores Reservoir commencing on Finlaystone Burn at a point in the parish of Kilmacolm one hundred and forty-two yards or thereby measured in a north-easterly direction from the north-east corner of Leperstone farmstead and terminating at the embankment (Work No. 5) hereinafter described:
- (5) An embankment (Work No. 5) being a heightening and lengthening of the existing embankment of Auchindores Reservoir situate partly in the parish of Kilmacolm and partly in the parish of Erskine both in the county of Renfrew commencing in the parish of Kilmacolm at a point one hundred and twenty yards or thereby measured in a north-westerly direction from the centre of the waste weir of the said Auchindores Reservoir and terminating in the parish of Erskine at a point two hundred and thirty yards or thereby measured in a south-easterly direction from the upstand shaft of the said Auchindores Reservoir:

- (6) A catchwater drain or conduit (Work No. 6) situate in the parish of Kilmacolm and county of Renfrew commencing in inclosure or field numbered 1691 on the Ordnance Survey map (edition of 1914) at a point twenty yards or thereby measured in a north-westerly direction from the southmost corner of the said inclosure or field numbered 1691 and terminating in Auchindores Reservoir at a point eighty yards or thereby measured in a westerly direction from the centre of the waste weir of the said reservoir: A.D. 1918.
- (7) A weir (Work No. 7) across the Bogside Burn situate in the parish of Erskine and county of Renfrew at a point three hundred and sixty-seven yards or thereby measured in a south-westerly direction from the south-west corner of Bogside farmsteading:
- (8) A conduit or line of pipes (Work No. 8) wholly situate in the parish of Erskine and county of Renfrew commencing at the weir (Work No. 7) hereinbefore described and terminating at a point in Auchindores Reservoir at the eastmost corner of said reservoir:
- (9) A filter bed (Work No. 9) situate in the parish of Kilmacolm and county of Renfrew within the inclosure numbered 1740 on the Ordnance Survey map (edition of 1914) adjoining the existing filter beds at Parkhill:
- (10) An intercepting drain (Work No. 10) wholly situate in the parish of Kilmacolm and county of Renfrew commencing at a point thirty-seven yards or thereby measured in a south-easterly direction from the north-east corner of Laigh Castlehill farmsteading and terminating at a point twenty yards or thereby measured in a north-easterly direction from the centre of the waste weir of Auchindores Reservoir.

6. The Town Council in addition to the foregoing works may upon the lands delineated on the deposited plans or on some part or parts thereof and on any other lands acquired or to be acquired under this Order make and maintain all such embankments dams weirs byewash channels bridges roads accesses approaches wells tanks gauges filters filter-beds sluices outlets

Power to
make sub-
sidiary
works.

A.D. 1918. drains aqueducts culverts channels mains pipes engines machinery buildings telegraphs telephones posts wires and other works and conveniences as may be necessary or convenient in connection with or subsidiary to the said works or any of them or necessary for conducting distributing inspecting maintaining repairing cleansing managing and using the same but nothing in this section shall exonerate the Town Council from any action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them Provided that any telegraphs telephones posts wires and other works constructed and maintained by the Town Council under the provisions of this section shall not be used for the transmission of any telegram which is within the exclusive privilege conferred upon the Postmaster-General by the Telegraph Act 1869.

Power to deviate laterally and vertically.

7. The Town Council may in constructing the works by this Order authorised deviate laterally from the lines thereof as shown on the deposited plans to the extent of the limits of lateral deviation respectively shown thereon and may deviate vertically from the levels of the various works as shown on the deposited sections to any extent not exceeding five feet upwards and to any extent downwards Provided that in the exercise of such powers of vertical deviation the Town Council shall not except in the case of crossing bridges or culverts or streams lay above the ground any pipe unless and except so far as is shown on the deposited sections Provided also that if the Town Council shall in the case of embankments exercise the powers of vertical deviation hereby granted they shall construct the embankments of such additional thickness at the base as shall be equal to five feet for every additional foot and shall make a corresponding addition to the height of any retaining wall Provided further that the Town Council shall not construct any embankment of any reservoir of a greater height above the general surface of the ground than that shown on the deposited sections in respect of the corresponding embankment or wall and three feet in addition.

Limiting powers of Town Council to abstract water.

8. The Town Council shall not construct any works for taking or intercepting water from any lands acquired by them unless the works are authorised by and the lands upon which the same are to be constructed are specified in this Order or in some other Act of Parliament or Order confirmed by Parliament.

9. Notwithstanding anything contained in this Order the Town Council shall not acquire any part of the lands numbered on the deposited plans 43 in the parish of Kilmacolm which is situate at a higher level than two feet above the intended new top water level of Auchindores Reservoir without the consent in writing of the owner of the said lands.

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For pro-
tection of
Major Hugh
Brown
Collins of
Auchin-
bothie.

10. The following provisions for the protection of Sir Michael Hugh Shaw Stewart of Greenock and Blackhall Baronet and his successors in the estate of Newark (in this section referred to as "the owner") shall unless otherwise agreed between the owner and the Town Council apply and have effect (that is to say) :—

For pro-
tection of
Sir Michael
Hugh Shaw
Stewart
Baronet.

(1) The right conferred on the Town Council by this Order to abstract water from the Cunston Burn shall be under the reservation to the owner of the right to the water of the spring in the catchment area of the said Cunston Burn rising at a point in his lands two hundred and twenty feet or thereby measured in a westerly direction from the southmost corner of the inclosure No. 1919 on the Ordnance Survey map which he shall have power and liberty to take and lead therefrom at any time for use within his lands for any required purpose :

(2) The Town Council shall not be entitled so far as their interests are concerned to object to the owner constructing and maintaining on his own lands on the Cunston Burn above the weir (Work No. 1) a reservoir and impounding and storing therein the water of the said burn up to and not exceeding ten million gallons for the use of the adjoining lands now belonging to him and of any buildings which may be erected thereon. Provided that the owner shall in constructing such reservoir make provision for bye-passing to the burn above the said weir the whole water of the said burn so long as the water flowing therein shall not exceed a volume of one hundred and eighty-seven thousand five hundred gallons per day of twenty-four hours and not less than one hundred and eighty-seven thousand five hundred gallons per day of twenty-four hours when the flow of the said burn exceeds that quantity and shall maintain the bye-pass pipe or channel in an efficient state :

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- (3) Nothing contained in this Order shall be held as affecting or shall detract from the provisions conditions and stipulations of the feu contracts of the ground for the Town Council's Dougliedhill reservoir and filters and tank and for their Knocknairhill reservoir and tank and filter beds at Dougliedhill situated on the owner's lands in so far as not already implemented.

For protec-
tion of Mrs.
Blakiston
Houston.

11. For the protection of Mrs. Lilian Agnes Blakiston Houston of Finlaystone and her successors in the estate (in this section called "the owner") the following provisions shall have effect (that is to say):—

The owner shall sell and convey to the Town Council—

- (1) Eight and a half acres of land for and in connection with the enlargement of Auchindores Reservoir (Work No. 4) the construction of the embankment (Work No. 5) the construction of the weir across Bogside Burn (Work No. 7) the construction of the filter bed at Parkhill (Work No. 9) and the land required for the construction of a new open catchwater drain forming the northern boundary of the area of one hundred and forty-three acres hereinafter mentioned:
- (2) Wayleaves or servitudes for the following works viz.:—
For the catchwater drain or conduit (Work No. 6) the conduit or line of pipes (Work No. 8) and the intercepting drain (Work No. 10):
- (3) All the water rights of the owner in and over her lands on the Bogside catchment area extending to one hundred and forty-three acres consisting of the area of seventy acres shown on the deposited plans and of the two further areas extending to seventy-three acres adjoining on the west and on the north-east of the said seventy acres.

The owner and her representatives and successors in the estate shall within three years after the termination of the present war put into and permanently maintain in pasture any cultivated land within the area of one hundred and forty-three acres above referred to and shall thereafter not cultivate any part thereof.

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The price payable by the Town Council to the owner in respect of the conveyance of the foregoing lands and rights and wayleaves and water rights and the obligation to make and permanently maintain in pasture the said area of one hundred and forty-three acres is the sum of four thousand pounds which shall also be in full satisfaction to the owner of all claims and for loss of fishing rights including claims for injury or damage and compensation in respect of any injury or alleged injury or interference with the fishings on the Auchindores Reservoir except any claims for surface damage which may be caused to the owner and her tenants by the construction of the works.

The aforesaid payment of four thousand pounds shall be accepted in full of all tenants' claims both in connection with the lands water rights and fishings with the exception of any tenants' claims which may be exigible in respect of surface damage in the construction of any of the said works.

The provision with regard to the thirty thousand gallons of water contained in the section of the Order the marginal note of which is "Compensation water from Bogside Burn" shall be accepted as in full compensation to the owner and all others having interests in the Bogside Burn.

The said sum of four thousand pounds shall be paid in such proportions and at such times as the lands may be conveyed for the purposes of the Order.

The Town Council shall in constructing the new open catchwater drain forming the northern boundary of the said area of one hundred and forty-three acres provide four crossing-places for the passage of cattle over such drain.

In the event of any dispute arising under this section it shall be decided by an arbiter to be selected by the parties mutually or appointed by the sheriff on the application of either party.

12. The following provisions for the protection of the Glasgow and South Western Railway Company (in this section referred to as "the company") shall notwithstanding any provisions in this Order unless otherwise agreed between the company and the Town Council apply and have effect (that is to say):—

For protection of Glasgow and South Western Railway Company.

- (1) In carrying the conduit or line of pipes (Work No. 2) under the railways and property of the company as

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also in effecting the maintenance repairs and renewals of the said conduit and line of pipes or other works affecting the said railways or property the same shall be done to the reasonable satisfaction of the engineer for the time being of the company and before commencing any such works the Town Council shall deliver to the company plans sections and specifications of the works proposed to be executed and such plans sections and specifications shall be delivered at least twenty-one days before the commencement of any such works and if at the expiration of twenty-one days from such delivery the plans sections and specifications shall not be approved by the said engineer of the company which approval shall not be unreasonably withheld there shall be deemed to be a difference which difference shall unless otherwise agreed be settled by arbitration in manner hereinafter mentioned and all such works shall be executed by and in all things at the expense of the Town Council and so as not to cause any injury to the said railways or property or interruption to the passage or conduct of the traffic over the said railways and if any injury to the said railways or property or interruption to such traffic shall arise the Town Council shall make compensation to the company in respect of such injury or interruption and such compensation unless agreed upon shall be determined by arbitration in manner hereinafter provided:

- (2) The Town Council shall at all times maintain the said conduit or line of pipes and all other works in connection therewith where the same are carried under the railways works or property of the company in substantial repair and good order to the reasonable satisfaction of the said engineer of the company and if and whenever the Town Council fail so to do the company may after giving fourteen days' notice thereof to the Town Council or in case of emergency without notice make and do all such works and things as may be reasonably requisite in that behalf and the sum from time to time certified by the said engineer of the company to be the reasonable amount of such their expenditure shall be repaid to the company by the Town Council:

- (3) Where any such works or the maintenance repairs or renewals thereof are commenced they shall be executed and completed with all despatch so that the traffic upon the said railways shall not be in any wise impeded or interfered with: A.D. 1918.
- (4) If by reason of any works or proceedings of the Town Council or of their contractors or of their workmen or of the leakage bursting or failure of any conduit or line of pipes or works of the Town Council the said railways or any of the works or lands thereof shall be injured or damaged such injury or damage shall be forthwith made good by the Town Council at their expense and to the reasonable satisfaction of the said engineer of the company and in the event of their failing so to do or in case of emergency the company may make good the same and recover the reasonable expenses thereof from the Town Council and if any interruption shall be caused to the traffic of the said railways by reason of any of the works of the Town Council or of any such leakage bursting or failure as aforesaid the Town Council shall make good and repay to the company any loss damages or expenses which they may sustain or be put to by reason of the construction or the leakage bursting or failure of the said conduit or line of pipes or works or in respect of the interruption of the traffic of the said railways:
- (5) The Town Council shall not without the consent in writing of the company under their common seal purchase take enter upon or use temporarily or permanently any railways lands property or works of the company or any estate right servitude or wayleave privilege or authority in over or upon the same or alter vary or interfere with the said railways or any of the works thereof or thereto appertaining except that the Town Council may purchase and acquire and the company shall sell and grant to the Town Council such servitude or right of wayleave over or under so much of the lands of the company shown on the deposited plans as may be necessary for carrying the said conduit or line of pipes under the said railways and works and through the said property

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of the company and for repairing maintaining and renewing the same and the works thereof and the amount to be paid for the acquisition of such easement or wayleave shall be ascertained in case of difference in the manner provided by the Lands Clauses Consolidation (Scotland) Act 1845 with reference to the purchase of lands otherwise than by agreement:

- (6) The Town Council shall bear and on demand pay to the company the reasonable expenses of the employment by them during the construction of the said conduit or line of pipes (Work No. 2) by this Order authorised under the railways of the company of a sufficient number of inspectors signalmen or watchmen for watching the said railways and works and the conduct of the traffic thereon with reference to and during the execution of the said works:
- (7) In the event of the company hereafter widening their said railways the Town Council shall afford the company all reasonable facilities for doing so at the sole expense of the company but such widening shall be carried out so as not to injuriously affect or interrupt any of the property or works of the Town Council:
- (8) If any difference shall arise between the Town Council and the company or between their respective engineers under this section (except subsection (5) of this section) such difference shall be determined by an arbiter to be appointed by the Board of Trade on the application of either the Town Council or the company.

Power to
alter roads
&c. tem-
porarily.

13. For the purposes and during the execution of the works which the Town Council are by this Order authorised to make and in maintaining the same and subject to the provisions of this Order the Town Council may temporarily break up or cross over or under alter or stop up any streets roads lanes paths bridges railways canals tramways culverts sewers drains rivers streams watercourses gas pipes or mains and water pipes or mains and telegraphic electric or telephonic pipes mains or apparatus in any of the lands shown on the deposited plans and specified in the deposited book of reference which they may

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from time to time find it expedient for any of those purposes so to interfere with providing a proper temporary substitute before interfering with the traffic on any such street road lane path bridge railway or tramway or the flow of water gas sewage or electricity in any such canal culvert sewer drain river stream watercourse pipe or main or apparatus and making full compensation to all persons injuriously affected thereby Provided that in interfering with any county road such temporary substitute shall be provided by leaving a clear and sufficient carriageway for the passage of carriages and traffic Provided further that nothing in this section shall extend to authorise any interference with any telegraphic line (as defined by the Telegraph Act 1878) or other property of His Majesty's Postmaster-General Provided also that nothing in this section shall extend to or authorise any interference with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 to 1909 to which the provisions of section 15 of the Electric Lighting Act 1882 apply.

14. Subject to the provisions of this Order the Town Council may by the waterworks by this Order authorised and by their existing waterworks or by any part thereof intercept take and divert into their existing Leperstone Reservoir the waters of the Cunston Burn and the tributaries and affluents thereof and may appropriate convey and use the said waters for the purposes of the water supply of the Town Council under the Act of 1865 and this Order.

Power to
take water
of Cunston
Burn.

15. Subject to the provisions of this Order the Town Council may by the waterworks by this Order authorised and by their existing waterworks or by any part thereof intercept take and divert into their existing Auchindores Reservoir and store the waters of the Bogside Burn and the tributaries and affluents thereof and may appropriate convey and use the said waters for the purposes of the water supply of the Town Council under the Act of 1865 and this Order.

Power to
take water
of Bogside
Burn.

16. The Town Council shall not take any water from the Cunston Burn until there shall be a quantity of water equal to one hundred and eighty-seven thousand five hundred gallons per day of twenty-four hours flowing down the said burn at the point of commencement of the conduit or line of pipes (Work No. 2) by this Order authorised but the Town Council may at

Compensa-
tion water
from Cun-
ston Burn.

A.D. 1918. the said point divert appropriate and use all the water in the said burn in excess of the said quantity Provided that such limitation shall be accepted as full compensation to the owners lessees and occupiers of lands mills manufactories works buildings and others and all other persons interested in the waters of the Cunston Burn and other waters flowing into that stream and in the streams and rivers into which they flow.

Compensation water from Bogside Burn.

17. The Town Council shall not take any water from the Bogside Burn until there shall be a quantity of water equal to thirty thousand gallons per day of twenty-four hours flowing down the said burn at the point of commencement of the conduit or line of pipes (Work No. 8) by this Order authorised but the Town Council may at the said point divert appropriate and use all the water in the said burn in excess of the said quantity Provided that such limitation shall be accepted as full compensation to the owners lessees and occupiers of lands mills manufactories works buildings and others and all persons interested in the waters of the Bogside Burn and other waters flowing into that stream and in the streams and rivers into which they flow.

Provision as to gauges.

18.—(1) For the purpose of ascertaining and measuring the quantities of water fixed in the two immediately preceding sections a suitable gauge shall be constructed and for ever afterwards maintained by the Town Council at the point of intake on the Cunston Burn stream and also at the point of intake on the Bogside Burn stream.

(2) If any dispute shall at any time arise as to the fulfilment by the Town Council of the obligations imposed upon them by this section and the two immediately preceding sections the same shall be determined by the sheriff and the decree of the sheriff after hearing the parties interested and in such form as he shall deem expedient shall be final and not subject to review in any way Provided that the sheriff shall have power if he see fit before proceeding to pronounce the said decree to appoint some competent person to report to him as to the fact out of which such dispute has arisen.

Power to use lands already acquired.

19. The Town Council may hold retain and use for the purposes of the water undertaking any lands already acquired for the purposes of their existing waterworks.

20. Persons empowered by the Lands Clauses Acts to sell and convey or discharge lands may if they think fit subject to the provisions of those Acts and of this Order grant to the Town Council any servitude right or privilege (not being a servitude right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Order in over or affecting any such lands and the provisions of the said Acts with respect to lands and feu duties or ground annuals so far as the same are applicable in this behalf shall extend and apply to such grants and to such servitudes rights and privileges as aforesaid respectively.

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Persons
under dis-
ability may
grant servi-
tudes &c.

21.—(1) The Town Council may in lieu of acquiring any lands for the purposes of the works by this Order authorised where the same are intended to be constructed underground acquire such servitudes only in such lands as they may require for such purposes and may give notice to treat in respect of such servitudes describing the nature thereof and the provisions of the Lands Clauses Acts shall apply to and in respect of the acquisition of such servitudes as fully as if the same were lands within the meaning of those Acts.

Power to
acquire servi-
tude only for
lines of
pipes.

(2) As regards any lands in respect of which the Town Council have acquired servitudes only under the provisions of this section the Town Council shall not be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall subject to such servitudes have the same rights to use and cultivate the said lands at all times as if this Order had not been confirmed.

(3) Provided always that nothing in this section contained shall authorise the Town Council to acquire by compulsion any such servitude in any case in which the owner in his particulars of claim shall require the Town Council to acquire the lands in respect of which they have given notice to treat for the acquisition of a servitude only and every notice to treat for the acquisition of a servitude shall be endorsed with notice of this provision.

22. The powers of the Town Council for the compulsory purchase of lands for the works authorised by this Order shall cease after the expiration of three years from the commencement of this Order.

Limiting time
for exercise of
compulsory
powers of pur-
chase.

23. If the works authorised to be constructed by this Order are not completed within six years from the commencement of

Period for
completion
of works.

A.D. 1918. this Order then on the expiration of that period the powers by this Order granted to the Town Council for executing any such works not so completed or in relation thereto shall cease except as to so much thereof as is then completed.

Town
Council
may enlarge
or increase
number of
pipes.

24. The Town Council may at any time subject to the provisions of this Order and notwithstanding the expiration of the period limited for completion of works maintain use extend alter renew relay replace enlarge and increase the number and size of the mains pipes and other conveniences of the Town Council at any time existing for conveying and distributing water for the purposes of the water undertaking Provided always that such extension enlargement or increase shall be executed only on lands or property belonging to the Town Council or which may be acquired by agreement or which they are by the Waterworks Clauses Acts 1847 and 1863 entitled to open and break up for such purposes.

For pro-
tection of
reservoirs
&c. from
pollution.

25. The Town Council may on any lands which they may acquire under the powers of this Order or otherwise construct all such drains channels and other works as they think necessary or desirable for preventing sewage or polluting liquids from entering or polluting the reservoirs aqueducts conduits or watercourses of the Town Council or any waters flowing into the same.

Power to
acquire and
hold lands
for protection
of works and
prevention of
pollution.

26. The Town Council may hold any lands already acquired by them for the purposes of their existing waterworks and also any lands acquired under this Order and may also by agreement purchase or take on lease for such term or terms of years as they may think fit or otherwise acquire and hold any other lands within the drainage area of any of their existing reservoirs or works or of any of the works by this Order authorised or servitudes or restrictions in or over the same which may in their opinion be necessary or desirable for the purpose of securing the purity of the water in the drainage area of the said reservoirs and works and of protecting their water supply against pollution nuisance encroachment or injury and so long as such necessity shall continue such lands shall not be deemed to be superfluous within the meaning of the Lands Clauses Acts Provided that the Town Council shall not create or permit any nuisance on any such lands and shall not erect or permit the erection of any buildings thereon except

such as are required in connection with the water undertaking or for farm buildings. A.D. 1918.

The Town Council may let for such period as they think fit or sell or feu or otherwise dispose of any land acquired under this section on such terms conditions and restrictions as regards its use as to the Town Council may seem fit for the purpose of securing that such land shall not be broken up for tillage and that no buildings which may prejudicially affect the water supply or the purity of the water shall be erected thereon. The proceeds of the sale of any lands by the Town Council shall be applied by them in paying off moneys borrowed by them for the purposes of this Order and to the extent of the amount so applied the borrowing powers of the Town Council for those purposes shall be cancelled and extinguished.

27. The water to be supplied by the Town Council need not be supplied in any case at a level higher or at a pressure greater than can be supplied or afforded by gravitation from the existing service reservoirs of the Town Council from which the supply is taken. Pressure.

28. The Town Council may from time to time borrow any sums of money required for the construction of the works and for the purchase of lands and other property and rights authorised by this Order not exceeding thirty-five thousand pounds and with the sanction of the Secretary for Scotland but not otherwise such further sums as may be requisite for the said purposes or for the general purposes of the undertaking and the Town Council may also borrow such further sum as may be required for the payment of the costs charges and expenses of or in connection with the obtaining and confirming of this Order and the Town Council may make and grant mortgages or other securities of the water assessment and rates rents and charges authorised by the Burgh Police Acts and this Order in security of the money so borrowed and interest thereon and any sums so to be borrowed may be borrowed on terms of the repayment thereof by annuity instalment or otherwise and the provisions of the Burgh Police Acts with reference to the bonds or mortgages to be granted therefor shall apply. The Secretary for Scotland shall have and may exercise in relation to such sanction as aforesaid all the powers of section 93 of the Local Government (Scotland) Act 1889. Power to borrow.

A.D. 1918.
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Periods of
repayment
of borrowed
money.

29. The Town Council shall pay off all moneys to be borrowed by them for the purposes and under the powers of this Order within the respective periods following (that is to say):—

As to the moneys to be borrowed for constructing the works and for the purchase of lands and other property and rights authorised by this Order within fifty years from the date or dates of borrowing the same if repayment be by means of a non-accumulating sinking fund or by equal instalments of principal or within forty years if repayment be by means of an accumulating sinking fund or by equal instalments of principal and interest:

As to moneys to be borrowed with the sanction of the Secretary for Scotland within such period and by such methods as the Secretary for Scotland may prescribe:

As to money to be borrowed for paying the costs charges and expenses of and in relation to this Order and the confirmation thereof within five years after the commencement of this Order.

Power to
re-borrow.

30. If after having borrowed the sums of money by this Order authorised or any part thereof the Town Council shall pay off the same or any part thereof otherwise than by means of annuities or instalments or of the sinking fund provided by this Order or out of moneys derived from the sale of lands it shall be lawful for the Town Council again to borrow the amount so paid off upon the same securities as those upon which the moneys so paid off were secured and so from time to time.

Sinking
funds and
borrowing
power for
current ex-
penses.

31. In the application to the burgh of section 48 (Sinking funds) and of section 49 (Power to borrow temporarily) of the Burgh Police (Scotland) Act 1903 the expression "any public general Act" shall be deemed to include this Order Provided that notwithstanding anything to the contrary in the said section 48 the periods of repayment hereinbefore provided shall apply to money borrowed under this Order.

Restriction
on exercise
of borrowing
powers.

32. Notwithstanding anything in this Order contained the Town Council shall not under the powers of this Order borrow any money (other than money required for the payment of

the costs charges and expenses of or in connection with the obtaining and confirming of this Order) during the continuance of the present war and twelve months thereafter unless the consent of the Treasury has been previously obtained and the periods limited by this Order for the compulsory purchase of lands and the completion of works shall be calculated from the date of the consent of the Treasury or the expiration of the said period of twelve months whichever event shall first happen.

A.D. 1918.

33. The existing waterworks and water supply of the Town Council and the waterworks authorised by and the lands to be acquired under this Order and the powers conferred by this Order shall be held administered and exercised by the Town Council under and subject to the powers and provisions of the Act of 1865 and of the Burgh Police Acts as amended by this Order and of this Order and all the provisions of those Acts shall so far as the same are not inconsistent with this Order apply to the purposes of the existing water supply and the water supply provided by this Order.

Application
of Acts.

34. Every person who wilfully fraudulently or by culpable negligence injures or suffers to be injured any pipe meter or other instrument for measuring water or any fittings belonging to the Town Council or who fraudulently alters the index to any meter or other instrument for measuring water or prevents any meter or other instrument for measuring water from duly registering the quantity of water supplied or fraudulently abstracts consumes or uses water of the Town Council shall (without prejudice to any other right or remedy for the protection of the Town Council) be liable to a fine not exceeding five pounds and the Town Council may in addition thereto recover the amount of any damage by them sustained:

Injuring
meters &c.

And in any case in which any person has wilfully fraudulently or by culpable negligence injured or suffered to be injured any pipe meter instrument or fittings belonging to the Town Council or has fraudulently altered the index to any meter or other instrument for measuring water or prevented the same from duly registering the quantity of water supplied or has fraudulently abstracted consumed or used water of the Town Council the Town Council may also enter upon the premises occupied by the offender and repair such injury and do all such works matters and things as may be necessary for ensuring the proper registering by such meter of the quantity

A.D. 1918. — of water supplied by means thereof and the expense of such repair and of all such works matters and things shall be repaid to the Town Council by the person so offending and may be recovered by them as water rates are recoverable. The existence of artificial means for causing such injury alteration or prevention or for abstracting consuming or using water of the Town Council when such pipe meter instrument or fittings is or are under the custody or control of the consumer shall be *prima facie* evidence that such injury alteration prevention abstraction consumption or use as the case may be has been fraudulently knowingly and wilfully caused by the consumer using such pipe meter instrument or fittings.

Byelaws for
preventing
waste &c. of
water.

35.—(1) The Town Council may make byelaws for the purpose of preventing the waste undue consumption misuse or contamination of water and may by such byelaws prescribe the size nature materials workmanship and strength and the mode of arrangement connection disconnection alteration and repair of pipes meters cocks ferrules valves soil-pans waterclosets baths cisterns and other apparatus (in this section referred to as "water fittings") to be used and forbid any arrangements and the use of any water fittings which may allow or tend to waste undue consumption misuse erroneous measurement or contamination.

(2) Such byelaws shall apply only in the case of premises to which the Town Council are bound to afford and do in fact afford or are prepared on demand to afford a constant supply and the provisions with respect to byelaws contained in sections 183 to 188 of the Public Health Act shall apply to all byelaws so made.

(3) In case of failure of any person to observe such byelaws as are for the time being in force the Town Council may if they think fit after twenty-four hours' notice in writing enter and by and under the direction of their duly authorised officer repair replace or alter any water fittings belonging to or used by such person and not being in accordance with the requirements of such byelaws and the expense of every such repair replacement or alteration shall be recoverable by the Town Council as the water rates in respect of the premises are recoverable.

Applica-
tion of
penalties.

36. All penalties so far as relating to water supply exigible under the provisions of the Burgh Police Acts and this Order

and of the Acts wholly or partially incorporated therewith (excepting any penalties which may be imposed upon the Town Council) shall be paid over to the Town Council instead of being applied in the manner provided by the last-mentioned Acts or the Acts therein referred to. A.D. 1918.

37. All offences against any of the provisions of this Order or any of the Acts incorporated with the same respectively or against any of the byelaws of the Town Council made under this Order may be prosecuted and all penalties in respect of offences against any of such provisions or byelaws may be recovered summarily by the Town Council under the Summary Jurisdiction (Scotland) Acts. Prosecution of offences.

38. Subject to the provisions of this Order the existing waterworks of the Town Council and the works authorised by this Order shall for all purposes whatsoever be and be deemed to be part of the water undertaking of the Town Council. New works to form part of water undertaking.

39. Nothing in this Order contained shall authorise the Town Council to take use or in any manner interfere with any land heritages or other subjects or any rights of whatsoever description belonging to His Majesty and under the management of the Minister of Munitions without the consent in writing of the said Minister on behalf of His Majesty first had and obtained (which consent the said Minister is hereby authorised to give). For protection of Minister of Munitions.

40. The Town Council shall make compensation for the damage or injury (if any) which may be sustained by His Majesty or His tenants in respect of His right of salmon fishing through the exercise of the powers of this Order And in case the amount of such compensation shall not be agreed upon the same shall be ascertained and fixed by the decision and decree arbitral of two arbiters to be appointed the one by the Commissioners of Woods and the other by the Town Council or of an oversman to be named by the said arbiters to act in the event of their differing in opinion and the Arbitration (Scotland) Act 1894 shall apply to any arbitration under this section The charges and expenses of such arbitration including the fees and expenses of the arbiters and oversman shall be paid by the Town Council. As to Crown salmon fisheries.

41. Nothing in this Order shall affect prejudicially any estate right power privilege or exemption of the Crown and in Crown rights.

A.D. 1918. particular nothing herein contained shall authorise the Town Council to take use or in any manner interfere with any land heritages or other subjects or any rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods without the consent in writing of the Commissioners of Woods on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners are hereby authorised to give).

Costs of
Order.

42. All costs charges and expenses of and incidental to the preparing for obtaining and confirming this Order or otherwise in relation thereto shall be paid by the Town Council out of their water revenues or money borrowed for water purposes or out of the water assessment and in the event of such costs being paid out of borrowed money the same shall be repaid within five years after the commencement of this Order.

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